

6. 24CV01402 LIANG, ZHIBIN V. HUANG, XIANGMEI

EVENT: Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property

The Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property is granted, and the Court will sign the form of order submitted. The Court directs Plaintiff to submit ex parte an Application for Appointment of an Elisor that is in compliance with Butte County Local Rule 1.12, Subdivisions B, C, and E, the Court finding that the remaining requirements have been satisfied.

7-8. 24CV03754 RAHMN, JACK v. MULHOLLAND, JACK ET AL

EVENTS: (1) City of Chico's Motion for Summary Judgment

(2) State Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication

City of Chico's Motion for Summary Judgment; or in the Alternative,
Summary Adjudication of the Issues Against the Complaint

Defendant and Cross-Complainant City of Chico's ("the City" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the subject premises where Plaintiff was injured was in a dangerous condition at the time of the incident and whether the injury to the Plaintiff was proximately caused by the dangerous condition [Undisputed Material Fact ("UMF" herein) Nos. 31, 36]; whether the City had actual or constructive notice of the condition causing Plaintiff's injuries [UMF No. 37]; and whether the City is protected by design immunity under *Government Code* §830.6 based on the approval and reasonableness of the subject crosswalk and intersection

The City of Chico's Motion for Summary Judgment; or in the Alternative, Summary Adjudication of the Issues Against the Complaint is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

State Defendants' Motion for Summary Judgment or,
Alternatively, Summary Adjudication

Defendants State of California and Board of Trustees of the California State University (collectively "Defendants" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the alleged dangers at the bike lane/crosswalk intersection were reasonably apparent to a person exercising due care [Undisputed Material Fact ("UMF" herein) Nos. 44, 45]; whether the alleged lack of warnings or a protective barrier did or did not proximately cause Plaintiff's injury [UMF Nos. 9, 13, 19, 47, 48, 52, 58, 65]; whether Defendants are or are not